

**ORDER SHEET**  
**IN THE LAHORE HIGH COURT,**  
**LAHORE**  
**JUDICIAL DEPARTMENT**

**I.C.A.No.70693 of 2021**

Rizwan Baig Rubi.    Versus.    Khurram Shahzad, etc.

| <i>Sr. No. of order/<br/>Proceedings</i> | <i>Date of order/<br/>Proceeding</i> | <i>Order with signature of Judge, and that of<br/>Parties' counsel, where necessary</i> |
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| <b>15.11.2021</b> | Mr. Safdar Iqbal Gondal, Advocate for the appellant.<br>Mr. Zargham Lukhesar and Barrister Hassan Khalid<br>Ranjha, Assistant Advocates General Punjab. |
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**MUZAMIL AKHTAR SHABIR, J:** Through this

Intra Court Appeal filed under Section 3 of the Law Reforms Ordinance, 1972, the appellant has called in question order dated 18.10.2021 passed by learned Single Judge-in-Chambers, whereby contempt of court petition filed by the appellant against the official respondents No. 1 to 7 and 10 and private respondents No. 8 and 9 for non-compliance of order dated 27.09.2018 passed by the same learned Single Judge of this Court in W.P.No. 99947 of 2017 has been dismissed.

2.     The contention of the learned counsel for the appellant is that vide order dated 27.09.2018 passed in W.P.No. 99947 of 2017, this Court allowed the Writ Petition in the following terms:-

***“In view of the aforesaid, both these petitions are allowed and impugned order dated 28.09.2017 passed by Respondent No.1 is set***

***aside. Respondents No. 4 and 5 cannot carry out the business of poultry farm at the present location and must remove it immediately from its present location.”***

(note: afore-referred Respondents No. 4 and 5 are now respondents No. 8 and 9)

which order is not being implemented, therefore, the official and private respondents are liable to be proceeded against for committing contempt of court for non-compliance of said order.

3. It is observed that the learned Single Judge-in-Chambers dismissed the contempt of court petition filed by the appellant by observing as under:-

***“In view of the order dated 01.07.2019 passed by august Supreme Court of Pakistan in Civil Petitions No. 4529 and 4530 of 2018, this petition has become infructuous.  
2. Disposed of accordingly.”***

The contention of the learned counsel for the appellant is that as the Hon’ble Supreme Court of Pakistan had not allowed any relief to the private respondents No. 8 and 9 (earlier respondents No. 4 and 5 in W.P.No. 99947 of 2017) vide order dated 01.07.2019 passed in Civil Petitions No. 4529 and 4530 of 2018, therefore, the order passed by learned Single Judge-in-Chambers dated 27.09.2018 still holds the field and was to be implemented in letter and spirit, consequently, the learned Single Judge-in-Chamber was not justified to

dismiss the contempt of court petition filed by the appellant.

It is observed that after direction was passed vide order dated 27.09.2018 against the private respondent Nos. 8 and 9 that they could not carry out business of poultry farm at the present location and must remove it immediately from the said location, the said respondents approached the Hon'ble Supreme Court of Pakistan and challenged the said order by filing Civil Petitions No. 4529 and 4530 of 2018, which were decided on 01.07.2019 vide the following order:-

***“After arguing the cases at some length, the learned counsel for the Petitioner does not press the Civil Petitions in order to make a fresh application to the appropriate authority by fulfilling all the conditions required by law.  
2. Be that as it may, the titled Civil Petitions for Leave to Appeal are dismissed as not pressed.”***

The perusal of the afore-said order shows that the Hon'ble Supreme Court of Pakistan had dismissed the afore-referred Civil Petitions for Leave to Appeal as not pressed, however, had allowed the petitioners /respondents therein to make a fresh application to the appropriate authority by fulfilling all the conditions required by law. Had the appellant not filed application to the respondents in furtherance of orders passed by the Hon'ble Supreme Court, the order of the High Court

would still hold the field and this Court could proceed against the respondents for its non-compliance. However, in the present case, the respondents No. 8 and 9 availed remedy in terms of orders of the Hon'ble Supreme Court of Pakistan, hence, the order passed by the learned Single Judge-in-Chambers had merged in the order passed by the Hon'ble Supreme Court of Pakistan, whereby private respondents had been permitted to file an application to appropriate authority, which remedy the private respondents have availed and have now been granted NOC (also challenged in this petition) by the official respondents. In this regard, we are forfeited by the law laid down in the judgment reported as **PLD 2016 Supreme Court 358** (*Sahabzadi MAHARUNISA and another versus Mst. GHULAM SUGHRAN and another*); the relevant portion of the same is reproduced below:-

***“From the ration of the case law cited above (from both jurisdictions), it is clear that the doctrine of merger has been duly applied to the reversal and modification cases and also to all those cases in which the judgment etc. of a lower forum has been affirmed in appeal or revision by a higher forum(s).....We may like to add here that the rule of merger shall also extend to the writ jurisdiction of the learned High Court(s) where the decisions of the lower fora, such as Tribunals and special Courts etc. when challenged have been affirmed by the court in exercise of its constitutional jurisdiction.”***

In view of the above, due to change in circumstances, as the order of the learned Single Judge-in-Chambers dated 27.09.2018 having been merged in the order dated 01.07.2019 passed by the Hon'ble Supreme Court of Pakistan and resulted in subsequent improvement in the status of the private respondents by issuance of NOC by official respondents, the order passed in Writ Petition could not be implemented, hence, the learned Judge-in-Chambers was justified to observe that in view of the order dated 01.07.2019 passed by the Hon'ble Supreme Court of Pakistan in C.P.Nos. 4529 and 4530 of 2018, the contempt of court petition has become infructuous. This is in line with the judgment of the Hon'ble Supreme Court of Pakistan reported as **PLD 1997 SC 351** (*PROVINCE OF THE PUNJAB through Secretary, Health Department versus Dr. S. MUHAMMAD ZAFAR BUKHARI*), wherein it has categorically been laid that presumption is attached to orders of superior courts that they are within jurisdiction and any order passed by this/High Court, which is contrary to the judgments of the august Supreme Court of Pakistan cannot be implemented by invoking power of contempt of court. The relevant paragraph of the afore-said judgment is reproduced below:-

***“13. Seen in the light of dictum laid down in these cases the appellant Government was right in pointing out to the High Court that its judgment being contrary to the judgments of the Supreme Court and the law laid down by it cannot be got implemented by invoking power of contempt of the Court. Learned Judge of the high Court without adverting to this question, insisted unfortunately on the implementation of the direction issued in the judgment. The implementation of the judgment would have amounted to acting contrary to law laid down by this Court. The promotion to which the respondent officer was legally entitled had been made by issuing the necessary notification promoting and appointing him as Associate Professor, thus further insistence to promote him to the post of Professor would be illegal. The justice having been done, initiation of contempt proceedings any further and the orders dated 8<sup>th</sup> and 29<sup>th</sup> October, 1995 requiring the appellant Government to act contrary to law are unwarranted in law. Both the orders are accordingly held to be illegal and unwarranted and are quashed. The appeal is, therefore, accepted. Parties to bear their own costs. ”***

4. Furthermore, it is for the court which passed the order to see itself whether its order is to be implemented or not and where the court does not intend to proceed against the respondents for committing contempt of court for non-compliance or violation of its own order, for reasons of its own in exercise of its discretionary power and is not feeling inclined to take any action, such matter of contempt being essentially between the court and the contemnor, any other court much less an appellate court or authority can interfere to direct such court to proceed further in the matter. Reliance in this regard is placed on

**PLJ 1979 Supreme Court 153 = PLD 1979 Supreme Court 912** (WEST PAKISTAN WATER AND POWER DEVELOPMENT AUTHORITY THROUGH ITS CHAIRMAN versus CHAIRMAN, NATIONAL INDUSTRIAL RELATIONS COMMISSION), wherein it is mentioned as under:-

*“The matter of contempt is essentially between the Court and the contemnor. If the Court concerned for reasons of its own and in the exercise of its discretion does not feel inclined to take any action or for example accepts an apology in a given case, it is not for any other Court much less an appellate Court or authority to direct the said Court that it must proceed in the matter or to reject the apology. This is on the principle that the power to punish for contempt is to be exercised only by the High Court whose contempt has been committed and not by any other Court.”*

5. Another aspect of the matter is that appeal in the contempt of court matters lies only against such orders in which a party is proceeded against for committing contempt of court and some final order is passed against him/her but appeal is not maintainable when the court does not feel it necessary to proceed further in the matter of contempt of court. Reliance in this behalf is placed on **PLD 1979 Supreme Court 912** *supra*, wherein while dealing with appeal under Section 10 of the Contempt of Court Act, 1976, it was observed as under:-

***“For the present, we are concerned merely with a case of a type where the High Court has not felt inclined to move further in the matter, it has neither issued any notice, nor any rule nisi, and nor framed a charge. In this context therefore when the High Court has not felt it necessary to proceed any further it is not an order of the kind contemplated for appeal under section 10. An indirect support for this view can be had from M. H. Khondkar and another v. The State and another (1) where the High Court had just issued a show-cause notice to a contemnor against which a petition for special leave to appeal was filed. The petition was dismissed with the following observations which exist at page 746 of this report and where it was held that “this notice was issued in the exercise of the inherent jurisdiction, as defined and limited by the Contempt of Courts Act, 1926, of the High Court to take cognizance of contempt of itself. We do not think we can grant leave to appeal at this stage when only a notice has been issued as that will be tantamount to ousting this jurisdiction of the High Court and taking upon ourselves to decide in the first instance whether a contempt of the High Court has been committed. We, therefore, refrain from going into the merits of the case. The learned Advocate appearing in support of this petition has not been able to show that there is legal bar in the circumstances of the case to the issuance of the notice. We decline to grant leave to appeal against the order. C.M.P.No. P.1 of 1960, decided on 10<sup>th</sup> November, 1960)” This shows that for the same reasons as are contained in the above passage order of the kind whereby a notice is issued or notice is declined is not an appealable order because, if so held then it will tantamount as not to leave the High Court free in this particular sphere. It is common knowledge that anonymous and pseudonymous letters invariably are received by superior Courts containing irresponsible statements which are just ignored, as the superior Courts do not in their wisdom ordinarily take notice of such communication. If, therefore, mere non-issuance of notice or consigning of such communications to record is to be made appealable the results may be preposterous, and quite against the intent of the legislature on the subject in hand.”***

***“(1) 1971 SCMR 743”***



6. A Division Bench of this Court by relying upon the afore-referred judgment **PLD 1979 Supreme Court 912** applied the same principle by holding that appeal under Section 19 of the Contempt of Court Ordinance, 2003 (*now in force*), shall lie only against decision or order of a High Court in exercise of its jurisdiction against an order whereby a party is punished for contempt of court. The relevant portion is reproduced below:-

***“Only such orders, decisions, judgments which finally terminate the contempt proceedings against the contemnor are appealable. The word “order passed in contempt” means the order only awarding punishment and it is the said order which can be assailed in Intra Court Appeal, whereas the interlocutory interim or procedural orders do not fall within the ambit of the order passed in contempt of court.”***

7. In view of what has been discussed above, as the learned Single Judge-in-Chambers has refused to entertain the matter basing its decision on the order of the august Supreme Court of Pakistan, we find no reason to interfere in the said order which even otherwise is based on proper appreciation of record and does not suffer from any misreading, non-reading, erroneous exercise of jurisdiction or illegality, for this Court to warrant interference in the same, hence, this Intra Court Appeal being devoid of any merit is **dismissed**. However, the

petitioner may, if advised, seek appropriate remedy before appropriate forum.

**(JAWAD HASSAN)**  
**JUDGE**

**(MUZAMIL AKHTAR SHABIR)**  
**JUDGE**

*\*Zeeshan Khan\**

Approved for reporting.

**(JAWAD HASSAN)**  
**JUDGE**

**(MUZAMIL AKHTAR SHABIR)**  
**JUDGE**